

JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 11961 of 2016

Ijaz Hamed

versus

Mst. Adila Ijaz and another

JUDGMENT

<i>Date of hearing</i>	22.04.2026
<i>Petitioner by</i>	<i>Mr. Muhammad Haseeb Ali Quddusi, learned Advocate.</i>
<i>Respondent No.1 by</i>	<i>Mr. R.A. Majid, learned Advocate.</i>

Sultan Tanvir Ahmad J:- The petitioner has challenged the judgment and decree dated 07.03.2016 passed by the learned Additional District & Sessions Judge, Lahore in Family Appeals No. 31 / 05.11.2015 and 30 / 05.11.2015. The learned counsel for the petitioner has pressed this petition only to the extent of gold ornaments granted by the learned Appellate Court in favour of respondent No. 1.

2. Mr. Muhammad Haseeb Ali Quddusi, learned counsel for the petitioner has submitted that decision of the learned Appellate Court is not a judgment by any means as it is not in conformity with the requirements of

Order XLI Rule 31 of the Code of Civil Procedure-1908 (‘the *Code*’). The learned counsel has argued that the learned Appellate Court, being last Court of fact, was required to rest the decision on the evidence. He stated that evidence on the record is not appreciated and no logical reason based on the record of the case is given by the learned Appellate Court while reaching to the conclusion different from the learned Family Court. He relied upon the case of “*Nazir Ahmad*”¹. He has contended that while dealing with the issue of recovery of gold ornaments, learned Appellate Court has predominantly relied upon the evidence / material of another matter and the decision of criminal case in which respondent No.1 was charged for the murder of mother of the petitioner, ignoring the relevant provisions of Qanun-e-Shahadat Order-1984 (the ‘*QSO*’) that has resulted into miscarriage of justice.

3. Mr. R. A. Majid, learned counsel for respondent No. 1 has supported the findings of the learned Appellate Court regarding the dowry articles and stated that the parents of respondent No. 1 had sound financial status, which is proved through un rebutted evidence.

4. I have heard the learned counsel for the parties and perused the record.

5. In an occurrence which took place on 20.08.2008, the petitioner lost his mother for which First Information Report was lodged. Subsequently, respondent No. 1 was also implicated in the case. It is not denied by the both sides that she was acquitted, from the allegations levelled against her, by the learned trial Court. As per the

¹ “*Nazir Ahmad and another v. Muhammad Siddique*” (2025 CLC 32).

claim of respondent No. 1, on 25.08.2008 she was expelled from the petitioner's house. On 28.05.2009 respondent No. 1 filed the suit in question which includes the claim of recovery of gold ornaments. The same was turned down by the learned Family Court vide judgment and decree dated 19.12.2012. The appeal of respondent No. 1 was partially allowed on 07.03.2016 permitting her to recover the gold ornaments. In paragraph No. 13 of the judgment-in-appeal specifications of the claimed gold ornaments have been discussed and the reasoning for reaching to the decision, at variance with the findings of learned Family Court, is given in paragraph No. 14 of the judgment-in-appeal. Brief reasoning contain some discussion about the criminal case and the conclusion arrived by the Court regarding forcible desertion as well as acquittal of respondent No. 1 from the charge of murder of the mother of the petitioner.

6. In course of the trial of the present case, affidavits of respondent No. 1 and her witnesses i.e. Khalid Mahmood, Muhammad Saleem Khan, Akbar Ali, Muhammad Qamar and Muhammad Ashfaq were brought on the record as Exh.P.1 to Exh.P.6. The petitioner has appeared before the learned Family Court as DW-3 and cross-examination was also conducted. Documentary evidence was given before the learned Family Court. A perusal of the judgment-in-appeal does not reflect any discussion of evidence led by two sides relating to the issue of gold ornaments.

7. In *Madan Gopal*², guidelines have been given regarding conflicting findings by the learned two Courts. The Honourable Supreme Court has settled that

² “*Madan Gopal and 4 others v. Maran Bepari and 3 others*” (PLD 1969 S.C. 617).

findings of the learned Appellate Court will ordinarily prevail, although it would not possess the same value or sanctity as concurrent findings. Such findings by learned Appellate Court are immune from interference only if it is found to be substantiated by evidence on the record and is supported by logical reason. The question whether in a particular case there has been a substantial compliance of the provisions of Order XLI Rule 31 of the *Code* would depend on the nature of the judgment³. In “*Allah Din*”⁴ case, decision of this Court was *set-aside* for the reason that the settled principle was not observed. This principle has been reaffirmed, by the Honourable Supreme Court in various cases including *Pakistan Refinery Limited*⁵. It appears that above discussed law has escaped view of the learned Appellate Court.

8. Another anomaly in this case, emphasized by the learned counsel for the petitioner, is regarding the reference and reliance made by the learned Appellate Court on the material involved in the criminal case registered for the murder of the mother of the petitioner. Article 56 of the *QSO* reads that *judgments, orders or decrees other than those mentioned in Article 55 are relevant if they relate to matters of a public nature relevant to the enquiry; but such judgments, orders or decrees are not conclusive proof of that which they state*. Article 55 of the *QSO* provides that a final judgment or order or decree by the competent Court in exercise of (i) probate, (ii) matrimonial, (iii) admiralty and (iv) insolvency jurisdiction are relevant when it

³ “*Ch. Abdul Kabeer vs. Mian Abdul Wahid and others*” (1968 SCMR 464).

⁴ “*Allah Din vs. Habib*” (PLD 1982 S.C. 465).

⁵ “*Pakistan Refinery Ltd., Karachi vs. Barrett Hodgson Pakistan (Pvt.) Ltd. and others*” (2019 S C M R 1726).

confers upon or takes away any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character, or the title of any such person to any such thing, is relevant. For the sake of clarity, article 55 of the QSO is reproduced hereunder:-

“55. Relevancy of certain judgments in probate, etc., jurisdiction. A final judgment, order or decree of a competent Court in the exercise of probate matrimonial, admiralty or insolvency jurisdiction, which confers upon or takes away from any person any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character, or the title of any such person to any such thing, is relevant.

Such judgment, order or decree is conclusive proof ____

that any legal character which it confers accrued, at the time when such judgment, order or decree came into operation;

that any legal character, to which it declares any such person to be entitled, accrued to that person at the time when such judgment, order or decree declares it to have accrued to that person;

that any legal character which it takes away from any such person ceased at the time from which such judgment, order or decree declared that it had ceased or should cease;

and that anything to which it declares any person to be so entitled was the property of that person at the time from which such judgment, order or decree declares that it had been or should be his property.

(Underlining is added)

9. Article 57 of the QSO provides that judgment, order or decree other than those mentioned in Articles 54, 55 and 56 are irrelevant unless existence of such judgment, order or decree is a fact in issue, or is relevant under some other provision of this order. The same provision existed as section 43 in the Evidence Act-1872. While dealing with the same, in Nur Elahi⁶ case, it has been concluded that Court which is to determine a matter must determine the same itself not effected by opinion expressed in any other case. Although the Honourable Supreme Court was dealing with a criminal case but clearly noted that the principle being laid is also applicable to the civil proceedings. The relevant extract is as under:-

“The law is that every criminal proceeding (and in fact every civil proceeding) is to be decided on the material on record of that proceeding and neither the record of another case nor any finding recorded therein should affect the decision. If the Court takes into consideration evidence recorded in another case of a finding recorded therein the judgment is vitiated. A finding recorded in a criminal case is not legal evidence in another criminal proceeding. In fact there is an express provision in the Evidence Act, that is, section 43, which debars the Court from taking it into consideration. It makes no difference that the finding is recorded by a High Court or the Supreme Court. It remains irrelevant. The Court which is to determine a matter must determine the matter itself unaffected by opinion expressed in other cases.”

(Emphasis supplied)

10. The QSO is clear that opinion of a Judge in one case can be relevant for another only when given in the

⁶ “Nur-Elahi vs. The State etc.” (PLD 1966 S.C. 708).

cases specifically referred to in the *QSO* and in no others. The judgment referred by the learned Appellate Court given in the criminal jurisdiction is related to the specific subject matter and it cannot be relied upon in the civil proceedings or for that matter family cases. It is elementary that each case must be decided on the evidence recorded in it and evidence in another case cannot be taken into account in arriving at the decision. Even in the civil cases this cannot be done unless the parties have agreed that the evidence in one case may be treated as evidence in the other⁷.

11. The above are settled and recognized principles of law. Though Section 17(1) of the Family Courts Act-1964 provides that provisions of *QSO* and the *Code*, except Sections 10 and 11 are not applicable and the learned Family Courts are permitted to adopt their own procedure, however, judgment-in-appeal lacking of discussion of the evidence led in that particular case and logical reason to reach the conclusion, is unsafe to be left in the field.

12. The Honourable Supreme Court of Pakistan in Fozia Mazhar's⁸ case has already ruled that Family Court may apply the general principles enshrined in the *Code*. In

⁷ “*Mitthulal and another v. The State of Madhya Pradesh*” (AIR 1975 S.C. 149).

Also see:-

- i. “*Muhammad Sohail and 2 others vs. Government of N.W.F.P and others*” (1996 S C M R 218).
- ii. “*Muhammad Arif vs. Malik Muhammad Farooq and 4 others*” (2002 CLC 1361).
- iii. “*Aminullah and another v. Mst. Robina Pervaiz and 2 others*” (2018 Y L R 642).
- iv. “*Ramadhari Chaudhry and others v. Janki Chaudhry*” (AIR 1956 Patna 49).

⁸ “*Fozia Mazhar vs. Additional District Judge, Jhang and others*” (PLD 2024 S.C. 771)

Shahida Fazil's⁹ case, learned Islamabad High Court has observed that application of the *Code* and Qanun-e-Shahadat are excluded, hence, Family Court has power to regulate its own proceedings depending upon circumstances of each suit. However, basic procedure for filing of suit, written statement, Pre-trial proceedings, recording of evidence and conclusion of trial were defined but certain eventualities were not defined in the special law, hence, Family Court can regulate its proceeding on the general principle of law.

13. In view of the above, the findings of the learned Appellate Court regarding the gold ornaments are *set-aside* and the case is remanded to the learned Appellate Court where the same shall be fixed on 08.05.2026.

14. Allowed in the above terms.

(Sultan Tanvir Ahmad)
Judge

Approved for reporting.
Announced in open Court on 30.04.2026

Judge

Rana Zahid Bashir

⁹ “*Shahida Fazil vs. Mst. Hina Tahir and 2 others*” (2017 YLR 622).